



United States
Attorney's Office
District of New Jersey



Pharmacy Owner Sentenced to 87 Months in Prison and Administrator Sentenced to 72 Months for their Respective Roles in a Health Care Fraud and Kickback Scheme

Wednesday, July 2, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

TRENTON, N.J. – The co-owner and the administrator of a Union City, New Jersey pharmacy were sentenced for their respective roles in conspiracies to defraud pharmacy benefit managers (“PBMs”) and health care benefit providers, including Medicare and Medicaid, out of more than \$65 million and to pay kickbacks and bribes to health care professionals and their staffs in exchange for referrals of prescriptions, U.S. Attorney Alina Habba announced. Husband and wife Samuel “Sam” Khaimov, 52, and Yana Shtindler, 48, both of Glen Head, New York, were sentenced by U.S. District Judge Michael A. Shipp after previously pleading guilty.

Khaimov, the co-owner of the pharmacy, was sentenced to a total of 87 months in prison – 60 months for conspiring to commit health care fraud and 27 months for conspiring to violate the federal anti-kickback statute, with the sentences to run consecutively. Khaimov was also sentenced to separate three-year terms of supervised release to run concurrently.

Shtindler, the administrator of the pharmacy, was sentenced to 72 months in prison for conspiring to commit health care fraud, followed by three years of supervised release. Khaimov and Shtindler’s co-defendants, Ruben Sevumyants of Marlboro, New Jersey, and Alex Fleyshmakhher of Morganville, New Jersey, have already pled guilty to counts in the Superseding Indictment and are pending sentencing.

According to documents filed in this case and statements made in court:

The Prime Aid Pharmacies – now closed – operated as “specialty pharmacies” out of locations in Union City, New Jersey and the Bronx, New York. As specialty pharmacies, they processed expensive medications used to treat various conditions, including Hepatitis C, Crohn’s disease, and rheumatoid arthritis. Khaimov was a co-owner of Prime Aid Union City and the lead pharmacist of Prime Aid Bronx.

Shtindler was Prime Aid Union City's Administrator. Sevumyants was Prime Aid Union City's operations manager. Alex Fleyshmakher worked at Prime Aid Union City and was an on-paper owner of Prime Aid Bronx. His father, Igor Fleyshmakher, a co-owner of Prime Aid Union City, pled guilty to separate federal charges.

Initially, the Prime Aid Pharmacies obtained retail network agreements with several PBMs, which allowed them to receive reimbursement payments for prescription medications, including specialty medications. PBMs acted as intermediaries on behalf of Medicare, Medicaid, and other health benefit providers, so when one of the Prime Aid Pharmacies received a prescription, the pharmacy would typically submit a claim for reimbursement to the PBM that represented the beneficiary's drug plan.

Starting in 2009, in order to obtain a higher volume of prescriptions, Khaimov, Sevumyants, Alex Fleyshmakher, and other Prime Aid employees paid bribes to doctors and doctors' employees to induce the doctors and their staffs to steer prescriptions to the Prime Aid Pharmacies. The bribes included payments by cash, check, and wire transfers, as well as expensive meals and other things of value. Another method of bribery involved paying an employee to work inside a doctor's office.

Prime Aid Union City – at the direction of Sevumyants, Shtindler, and Khaimov – also engaged in the pervasive and fraudulent practice of billing health benefit providers and PBMs for medications that were never provided to patients. While Prime Aid generally provided medications for initial prescriptions it received, it systematically billed for refills for those same medications without ever dispensing them to patients. Indeed, according to the Superseding Indictment, from 2013 through 2017, Prime Aid Union City received at least \$65,000,000 in reimbursement payments from Medicare, Medicaid, and private health benefit providers for medications that Prime Aid Union City not only failed to give patients, but that Prime Aid Union City also never even ordered or had in stock at the pharmacy.

Over time, PBMs conducted routine audits of Prime Aid Union City and discovered its practice of billing but not dispensing medications. In response to these audits, Shtindler instructed Prime Aid employees to falsify records submitted to the PMBs. In addition, Sevumyants, with Shtindler's knowledge and approval, forged shipping records of a private commercial shipping company to make it appear as if medications were shipped to the patients when, in fact, they were not.

U.S. Attorney Habba credited special agents of the FBI, under the direction of Special Agent in Charge Stefanie Roddy in Newark; special agents of IRS-Criminal Investigation, under the direction of Special Agent in Charge Jenifer Piovesan in Newark; special agents of the Department of Health and Human Services-Office of Inspector General, under the direction of Special Agent in Charge Naomi Gruchacz; the N.J. Office of the Insurance Fraud Prosecutor, Medicaid Fraud Unit, under the direction of Acting Insurance Fraud Prosecutor Tracy M. Thompson, and the N.J. Office of the State Comptroller, under the direction of Acting Comptroller Kevin Walsh, with the investigation leading to today's guilty pleas.

The government is represented by Assistant U.S. Attorneys Aaron L. Webman of the Economic Crimes Unit of the U.S. Attorney's Office in Newark and Martha K. Nye of the U.S. Attorney's Office in Trenton.

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Khaimov’s defense counsel: Jenny Kramer, Esq., New York, NY

Shtindler’s defense counsel: Lawrence Lustberg, Esq., Newark, NJ

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Topic

HEALTHCARE FRAUD

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